

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

State of Ohio, ex rel. Dave Yost,
Attorney General,

Plaintiff,

v.

The Landings Property Association, Inc., *et al.*,

Defendants.

Case No. 20IN06-0149

VISITING JUDGE
JAMES L. KIMBLER

Mullins Bros., Ltd.,

Defendant/Third-Party
Plaintiff,

v.

Carol A. Didinger, Trustee, *et al.*,

Third-Party Defendants.

**RESPONSES OF THE LONG DEFENDANTS TO PLAINTIFF STATE OF OHIO'S
FIRST SET OF REQUESTS FOR ADMISSION, INTERROGATORIES, AND
REQUESTS FOR PRODUCTION OF DOCUMENTS**

Pursuant to Rules 26, 33, 34 and 36 of the Ohio Rules of Civil Procedure, the Long Defendants¹ (the “Long Defendants”), hereby respond to plaintiff State of Ohio’s (“Plaintiff”) First Set of Requests for Admission, Interrogatories, and Requests for Production of Documents (the

¹ Angela J. Arumpanayil, Trustee; Al A. Balaa; Deborah Banda, Enon Banda; Cary S. Beck; Erika D. Beck; Andrea Belcher; Kenneth Belcher; Anita Bird, Trustee; Robert Boyd; Janet Boyd; Eric Lee Brown; Revecca M. Buckwalter; Aaron Burak; Allison Burak; Edwin L. Cable; Sandra M. Cable; Chu-Hsiang Chen; Yong-Hwa Chen; Karen L. Cherup; Matthew A. Cherup; Joseph R. Christopher; Cheryl K. Christopher; Christopher A. Clark; Kelly L. Clark; Marcell Codispoti; Peggy Codispoti; Paula C. Compton-Solie; Edward L. Cosby; Janice Cosby, Trustees; Derk D. Demaree; Anita M. Demaree; Joseph M. Depolo; Robin L. Depolo; Carol A. Didinger, Trustee; Mark Driftmyer, Trustee; Linda L. Fritz; Marilou M. Fritz; Peggy A. Gaddis; Donald L. Garvic; Andreas Giakoumas; Ypatia Giakoumas; James Goodrich; Diane Goodrich; Carolyn Gray; Gary Gray; Adrienne D. Harris; Jeffry D. Harris; Bharon Hoag; Heather Hoag; Shane Alan Kinton, Trustee; Laurie Ann Kirkpatrick, Trustee; Jennifer Lebold; Robert S. Lebold; Richard Littleton; Vicki Littleton; Mark A. Long; Denise A. Long; Jesse L. Marlow; Jane C. Marlow; Hewlet McFarlane; Angela N. Merryman; Scott T. Miglin; Susan D. Miglin; Mount Vernon Nazarene University; Stephen D. Mullendore; Jeanne C. Mullendore, Trustees; Chetan I. Patel; Chetna C. Patel; Douglas P. Peterson; Diana L. Peterson; Philip B. Petrie; Priscilla J. Petrie; Randolph B. Plasse; Tina M. Plasse; Bradley Porter; Tonya Porter; Brian Przeracki; Kenneth Rhoades; Mary Marjory Rhoades; Ralph Shafer; Mary Margaret Snow; Matthew Snow; Megan Snow; Phil Stopher; Ellen Stopher; Jeffrey Strickland; Rachel Strickland; Nancy Stull; Rodger Stull; Mark S. Tuel; Michael Ulrey; Rosemary Ulrey; Lawrence Vail; Nancy Vail; Alexander Varughese; Marcia J. Varughese; Brad Whitaker; Leslie Whitaker; Andrea White; Dianne L. Williams; Margaret B. Williams; and Timothy J. Williams

“discovery requests”). The Long Defendants are conducting an ongoing investigation and reserve the right to supplement any response herein. The Long Defendants’ failure to object to any interrogatory or request for production does not waive any general or specific objection or privilege, and does not constitute an admission by the Long Defendants that the information or material requested is either relevant or admissible.

OBJECTIONS

1. The Long Defendants reserve all proper objections to the materiality, relevance and/or admissibility of the subject matter of the responses provided to the discovery requests. All responses are provided subject to and without waiving the general objections as well as the objections listed in the individual responses.

2. The Long Defendants object to the definitions and instructions submitted with the discovery requests to the extent that they attempt to impose obligations that exceed the requirements set forth in the Ohio Rules of Civil Procedure.

3. The Long Defendants object to the discovery requests to the extent that they seek information and documents protected from disclosure by the attorney-client privilege, the work-product doctrine, or any other privilege available by statute, rule, or common law. No such privileged information will be disclosed.

4. The Long Defendants object to each discovery request to the extent it seeks information or documents already within the requesting party’s knowledge, possession, custody, or control, or is equally or more easily available to it, on the grounds that such request is unduly burdensome and oppressive.

5. The Long Defendants object to the discovery requests to the extent that they are vague, unduly burdensome, oppressive, or seek information that is not relevant to any party’s claim or defense, nor proportional to the needs of the case, considering the importance of the issues at

stake in the action, the amount in controversy, the parties' relative access to relevant information, the parties' resources, the importance of the discovery in resolving the issues, and whether the burden or expense of the proposed discovery outweighs its likely benefit.

6. Any response that non-objectionable documents will be produced is not to be construed as a representation that such documents are in existence or are currently in the possession, custody or control of the Long Defendants, but is only meant to indicate that any such document found by the Long Defendants will be produced.

7. The Long Defendants state that their responses to the discovery requests are based upon information known or believed to be true at the time of this response. The Long Defendants expressly reserve the right to amend or supplement their responses if they learn of new information through further factual investigation and/or discovery.

8. In responding to the discovery requests, the Long Defendants conducted, are conducting, and/or will conduct a reasonable and diligent investigation. To the extent the discovery requests ask the Long Defendants to take any action other than this, the Long Defendants object because the discovery requests are unreasonably burdensome and oppressive.

9. The Long Defendants' responses are provided with the understanding that they will not be construed as an admission of any definition or instruction used by Plaintiff as either factually correct or legally binding upon the Long Defendants. Any definitions or terms used in these responses are used only for purposes of responding to Plaintiff's discovery and for no other purpose.

10. The Long Defendants further object to the discovery requests to the extent they assume alleged facts that are in dispute. By answering the discovery requests, the Long Defendants have ignored the extraneous material.

11. The exact wording and sentence structure may be that of the undersigned attorneys and does not purport to be the exact language of the executing party.

12. The Long Defendants object to the discovery requests if and to the extent they demand the Long Defendants to supplement their responses or productions in a manner inconsistent with or exceeding the Long Defendants' obligations under the applicable state and local rules. The Long Defendants will supplement their responses to the discovery requests in accordance with all applicable rules.

13. The Long Defendants object to Plaintiff's document requests to the extent they request the Long Defendants to provide documents not within their possession, custody or control and not within the custody or control of any of their representatives, agents or attorneys.

14. The Long Defendants object to Plaintiff's document requests insofar as they request documents created subsequent to the commencement of this suit. This information is not relevant to any party's claim or defense.

15. To the extent the Long Defendants agree to produce documents responsive to this request, documents will be made available for inspection and copying at a mutually agreed upon time and place, and subject to protective order.

REQUESTS FOR ADMISSION

Request for Admission No. 1:

Admit that the Long Defendants are the owner(s) of the Dam, individually or collectively.

Response: OBJECTION. This request calls for a legal conclusion. Notwithstanding and without waiving this objection and the preceding general objections, the Long Defendants each deny that they are owners of the Dam.

Request for Admission No. 2:

Admit that each of the Long Defendants owns one or more lots in the Phase VII and/or the Phase VIII Developments.

Response: Each of the Long Defendants admits that as to him, her, or it, as the case may be, they own one or more lots in the Phase VII and/or the Phase VIII Developments, but have no personal information as to each and every one of the other Long Defendants.

Request for Admission No. 3:

Admit that each deed associated with the lots owned by the Long Defendants in the Phase VII and/or Phase VIII Developments has a copy of the Phase VII Declaration and/or Phase VIII Declaration attached to it.

Response: OBJECTION. This request seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Notwithstanding and without waiving this objection and the preceding general objections, the Long Defendants each deny that the deed associated with their lot or lots had a copy of the Phase VII Declaration or Phase VIII Declaration attached to it, but have no personal information as to each and every one of the other Long Defendants and their deeds.

Request for Admission No. 4:

Admit that one or more of the Long Defendants paid annual assessments or dues at one time to The Landings Property Owners Association, Inc., to maintain the common properties of the Phase VII and/or Phase VIII Developments.

Response: OBJECTION. This request seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Further, this request assumes that the only purpose of annual assessments or dues is to maintain common properties. Notwithstanding and without waiving these objections and the preceding general objections, the Long Defendants each deny that he, she, or it, as the case may be, paid annual assessments or dues at one time to The Landings Property Owners Association, Inc., to maintain the common properties of the Phase VII and/or Phase VIII Developments, but have no personal information as to each and every one of the other Long Defendants and their payments or lack of payments.

Request for Admission No. 5:

Admit that one or more of the Long Defendants paid annual assessments or dues at one time to The Landing Development Phase VII and VIII Property Owners Association, Inc., to maintain the common properties of the Phase VII and/or Phase VIII Developments.

Response: OBJECTION. This request seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Further, this request assumes that the only purpose of annual assessments or dues is to maintain common properties. Notwithstanding and without waiving these objections and the preceding general objections, the Long Defendants each deny that he, she, or it, as the case may be, paid annual assessments or dues at one time to The Landing Development Phase VII and VIII Property Owners Association, Inc., to maintain the common properties of the Phase VII and/or Phase VIII Developments, but have no personal information as to each and every one of the other Long Defendants and their payments or lack of payments.

Request for Admission No. 6:

Admit that the Dam is not in compliance with Ohio Dam Safety Laws, as codified in R.C. Chapter 1521 and Ohio Adm.Code Chapter 1501:21.

Response: OBJECTION. This request calls for a legal conclusion. Notwithstanding and without waiving this objection and the preceding general objections, the Long Defendants each deny that the Dam is not in compliance with Ohio Dam Safety Laws.

Request for Admission No. 7:

Admit that the Long Defendants have not performed any remedial measures on the Dam to prevent failure of the Dam.

Response: OBJECTION. This request assumes that the Long Defendants had an obligation to perform remedial measures on the Dam. Notwithstanding and without waiving this objection and the preceding general objections, the Long Defendants deny that they had any obligation to perform any remedial measures on the Dam to prevent failure of the Dam, because only dam owners have any obligation to perform remedial measures on a dam, and they are not owners of the Dam, and any performance of remedial measures by any of the Long Defendants would constitute a trespass. Further responding, the Long Defendants admit that they have not performed any remedial measures on the Dam.

Request for Admission No. 8:

Admit that on or about March 22, 2005, Mullins Bros., Ltd. ("Mullins Bros."), filed the Phase VII Declaration with the Knox County Recorder at File Number 2005-00002853, Book No. 935, Page No. 640.

Response: Admit

Request for Admission No. 9:

Admit that a true and accurate copy of the Phase VII Declaration is attached as Exhibit 1.

Response: Admit

Request for Admission No. 10:

Admit that Section 4(B) of the Phase VII Declaration states as follows:

Developer shall require the owners of all lots to become members of a non-profit corporation known as the Landings Common Area Association, Inc. This corporation shall have the sole and exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance. However, Members of the Waters Edge Homeowners Association and their guests shall enjoy, without payment of any fees or costs to the owner thereof, the right to utilize the lake for recreational purposes and shall hold the owner harmless from any claim, loss or liability associated with their (and their guests) use of the lake. Said parties' use of the lake shall be at their own risk.

Each lot owner will pay an annual assessment in an amount determined by the Board of Trustees of the corporation which shall be \$200 until changed by the corporation. Further the corporation shall have such powers and are set forth in the Articles and Regulations duly adopted or modified. The corporation may enforce sections of this Declaration in the future and impose liens as provided. Each lot owner shall be jointly and severally liable for the payment of any assessments imposed by the corporation on any respective lot. Initial Articles of Incorporation are attached hereto and recorded herewith as Exhibit "A".

Response: Admit

Request for Admission No. 11:

Admit that on March 13, 2007, Mullins Bros. filed the Phase VIII Declaration with the Knox County Recorder at File Number 2007-00002401, Book No. 1069, Page No. 118.

Response: Admit

Request for Admission No. 12:

Admit that a true and accurate copy of the Phase VIII Declaration is attached as Exhibit 2.

Response: Admit

Request for Admission No. 13:

Admit that Section 4(B) of the Phase VIII Declaration states as follows:

Developer shall require the owners of all lots to become members of a non-profit corporation known as the Landings Common Area Association, Inc. This corporation shall have the sole and exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance. However,

Members of the Waters Edge Homeowners Association and their guests shall enjoy, without payment of any fees or costs to the owner thereof, the right to utilize the lake for recreational purposes and shall hold the owner harmless from any claim, loss or liability associated with their (and their guests) use of the lake. Said parties' use of the lake shall be at their own risk.

Each lot owner will pay an annual assessment in an amount determined by the Board of Trustees of the corporation which shall be \$200 until changed by the corporation. Further the corporation shall have such powers and are set forth in the Articles and Regulations duly adopted or modified. The corporation may enforce sections of this Declaration in the future and impose liens as provided. Each lot owner shall be jointly and severally liable for the payment of any assessments imposed by the corporation on any respective lot.

Response: Admit

Request for Admission No. 14:

Admit that the Long Defendants have an obligation to comply with the requirements in the Phase VII and Phase VIII Declarations.

Response: OBJECTION. This request calls for a legal conclusion. In addition, this request seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Notwithstanding and without waiving these objections and the preceding general objections, the Phase VII and Phase VIII Declarations impose obligations on Mullins Bros, Ltd., and upon the Landings Common Area Association, Inc. Any alleged obligations set forth in the Declarations as to the Long Defendants are purported obligations to an purported entity that has never existed, the Landings Common Area Association, Inc., and the Long Defendants therefore have no obligation to comply with any requirements in the Declarations.

Request for Admission No. 15:

Admit that “sole and exclusive control of the Lake,” as provided in Section 4(B) of the Phase VII and Phase VIII Declarations, includes sole and exclusive control of the Dam.

Response: OBJECTION. This request calls for a legal conclusion. In addition, this request seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Notwithstanding and without waiving these objections and the preceding general objections, further responding, this request reads language into the Declaration that is not there, and a “lake” and a “dam” are two very different things. In addition, Plaintiff has admitted that the word “dam” never appears in the Declarations, which were prepared by legal counsel for Mullins Bros., Ltd, and reviewed by Mullins Bros., Ltd., and which were prepared without any input from, or consent of, the Long Defendants. Further responding, the Long Defendants deny this request.

Request for Admission No. 16:

Admit that the responsibility for the “care and maintenance” of the Lake, as provided in Section 4(B) of the Phase VII and Phase VIII Declarations, includes the responsibility for the care and maintenance of the Dam.

Response: OBJECTION. This request calls for a legal conclusion. In addition, this request seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Notwithstanding and without waiving these objections and the preceding general objections, further responding, this request reads language into the Declaration that is not there, and a “lake” and a “dam” are two very different things. In addition, Plaintiff has admitted that the word “dam” never appears in the Declarations, which were prepared by legal counsel for Mullins Bros., Ltd, and reviewed by Mullins Bros., Ltd., and which were prepared without any input from, or consent of, the Long Defendants. Further responding, the Long Defendants deny this request.

Request for Admission No. 17:

Admit that the Landings Common Area Association, Inc., was never established by the Developer Mullins Bros.

Response: OBJECTION. This request calls for a legal conclusion. In addition, this request seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Notwithstanding and without waiving these objections and the preceding general objections, the Long Defendants are unaware of an entity known as the Landings Common Area Association, Inc. ever being established by Mullins Bros.

Request for Admission No. 18:

Admit that none of the Long Defendants ever became members of the Landings Common Area Association, Inc., as required by Section 4(B) of the Phase VII and Phase VIII Declarations.

Response: OBJECTION. This request calls for a legal conclusion. In addition, this request seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Further, this request assumes that the Long Defendants were required to become members of the Landings Common Area Association, Inc., which is not true. Notwithstanding and without waiving these objections and the preceding general objections, the Long Defendants deny that they were required to become members of the Landings Common Area Association, Inc. by Section 4(B) of the Phase VII and Phase VIII Declarations. The only language in Section 4(B) of the Declarations setting forth a requirement regarding the Landings Common Area Association, Inc. is a requirement imposed upon Mullins Bros., Ltd. Further responding, the Long Defendants each admit that they never became members of the Landings Common Area Association, Inc., because it would be impossible to join a corporation that never existed, but have no personal information as to each and every one of the other Long Defendants and their membership or lack thereof.

Request for Admission No. 19:

Admit that a true and accurate copy of the Articles of Incorporation for The Landings Property Owners Association, Inc., is attached as Exhibit 3.

Response: OBJECTION. This request seeks information that is not relevant to any claim or defense asserted by any party in this litigation. In addition, there was no Exhibit 3 attached to the discovery requests, and the Long Defendants are therefore unable to admit or deny this request. Notwithstanding and without waiving these objections and the preceding general objections, the Long Defendants state that they have no personal knowledge of the Articles of Incorporation for The Landings Property Owners Association, Inc., because those purported Articles of Incorporation were never provided to them by Mullins Bros., Ltd. or The Landings Property Owners Association, Inc., and they are therefore unable to admit or deny whether any document is a true and accurate copy of those purported Articles of Incorporation.

Request for Admission No. 20:

Admit that the Articles of Incorporation of The Landings Property Owners Association, Inc., identify that the stated purpose of The Landings Property Owners Association, Inc., is “[t]o hold, maintain and control common properties of The Landings Phase VII and VIII.”

Response: OBJECTION. This request seeks information that is not relevant to any claim or defense asserted by any party in this litigation. In addition, there were no Articles of Incorporation of The Landings Property Owners Association, Inc., attached to the discovery requests, and the Long Defendants are therefore unable to admit or deny this request. Notwithstanding and without waiving these objections and the preceding general objections, the Long Defendants have no personal knowledge of the Articles of Incorporation for The Landings Property Owners Association, Inc., because those purported Articles of Incorporation were never provided to them by Mullins Bros., Ltd. or The Landings Property Owners Association, Inc., nor were they referenced in or attached to the Phase VII and Phase VIII Declarations.

Request for Admission No. 21:

Admit that the “common properties of The Landings Phase VII and VIII” for which The Landings Property Owners Association, Inc., was established “[t]o hold, maintain and control,” as stated in its Articles of Incorporation, include the property where the Lake and the Dam were and are located at Parcel No. 66-09675.162, as described in Requests for Admissions Nos. 19 and 20.

Response: OBJECTION. This request seeks information that is not relevant to any claim or defense asserted by any party in this litigation. In addition, there were no Articles of Incorporation of The Landings Property Owners Association, Inc., attached to the discovery requests. Notwithstanding and without waiving these objections and the preceding general objections, the Long Defendants have no personal knowledge of the “common properties of The Landings Phase VII and VIII”, as used in the Articles of Incorporation, because those purported Articles of Incorporation were never provided to them by Mullins Bros., Ltd. or The Landings Property Owners Association, Inc. and none of them have ever been members of the Landings

Property Owners Association, Inc., or even known of its existence. In addition, there are no common areas in either Phase VII or Phase VIII of the Landings. The Long Defendants therefore deny this request.

Request for Admission No. 22:

Admit that on or about August 1, 2007, Mullins Bros. transferred the property where the Lake and the Dam were and are located at Parcel No. 66-09675.162 to The Landings Property Owners Association, Inc., via Quitclaim Deed for \$0 filed with the Knox County Recorder at Book No. 1091, Page No. 637.

Response: The Long Defendants have no personal knowledge of the indicated transfer, and they were never informed by Mullins Bros., Ltd. that Mullins Bros., Ltd. transferred any property to The Landings Property Owners Association, Inc., but admit that the Knox County Recorder's copy of a Quitclaim Deed appears to show the transfer of property by Mullins Bros., Ltd. to The Landings Property Owners Association, Inc. on or about August 1, 2007.

Request for Admission No. 23:

Admit that a true and accurate copy of the Quitclaim Deed from Mullins Bros. to The Landings Property Owners Association, Inc., is attached as Exhibit 4.

Response: The Long Defendants have no personal knowledge of the indicated transfer, and they were never informed that Mullins Bros., Ltd. transferred any property to The Landings Property Owners Association, Inc., but admit that Exhibit 4 appears to be an accurate copy of a Quitclaim Deed from Mullins Bros., Ltd. to The Landings Property Owners Association, Inc. on or about August 1, 2007.

Request for Admission No. 24:

Admit that a true and accurate copy of the Articles of Incorporation for The Landing Development Phase VII and Phase VIII Property Owners Association, Inc., is attached as Exhibit 5.

Response: OBJECTION. This request seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Notwithstanding and without waiving this objection and the preceding general objections, admit.

INTERROGATORIES

Interrogatory No. 1:

Identify all persons who provided information for answering and/or assisting in answering these Requests for Admissions, Interrogatories, and Requests for Production of Documents. For each such person, please specify which Request for Admission, Interrogatory, or Request for Production of Documents for which that person provided information or assisted in answering.

Answer: OBJECTION. This interrogatory requests information that is protected by the attorney-client privilege, and the attorney work product doctrine. In addition, this interrogatory is overbroad and unduly burdensome. Notwithstanding and without waiving these objections and the preceding general objections, all of the Long Defendants provided information for responding to the discovery requests.

Interrogatory No. 2:

Identify and provide the document(s) that the Long Defendants reviewed in order to answer each interrogatory.

Answer: OBJECTION. This interrogatory requests information that is protected by the attorney-client privilege, and the attorney work product doctrine. In addition, this interrogatory is overbroad and unduly burdensome. Notwithstanding and without waiving these objections and the preceding general objections, the Long Defendants reviewed documents associated with their individual properties which are a matter of public record, and the documents identified in their response to the Request for Production of Documents.

Interrogatory No. 3:

Identify each person the Long Defendants intend to call as a witness at any future trial or hearing.

Answer: OBJECTION. The decision as to the identity of witnesses at any future trial or hearing will be made by counsel for the Long Defendants. The identity of witnesses who legal counsel will choose to present at a trial or hearing is protected by the attorney work product doctrine. In addition, a final decision has yet to be made on trial or hearing witnesses, at least in part because there is no hearing or trial scheduled in this case. Notwithstanding and without waiving this objection and the preceding general objections, counsel for the Long Defendants may call some or all of the following individuals, among others, to testify at any future trial or hearing:

1. Each and every one of the Long Defendants.

2. Robert L. Rauzi
3. Steve Mullins
4. Jim Mullins
5. Cameron Keaton, P.E., P.S.
6. Brian Ball
7. Richard K. Mavis
8. Mia P. Kannick, P.E.
9. Don Yauger
10. Jerry Baker
11. Past and present homeowners and lot owners in The Landings who are not members of the Long Defendants
12. Past and present homeowners and lot owners in Waters Edge
13. David Hanselmann
14. Jim Huitger
15. Kim M. Rose
16. Bill Tepe
17. Eric Heis
18. Steven Upham
19. John Haughton
20. Margaret Ann Ruhl
21. Keith Banachowski, P.E.

Interrogatory No. 4:

What actions have the Long Defendants taken to comply with the requirements in the Phase VII and Phase VIII Declarations?

Answer: OBJECTION. This interrogatory assumes that the Long Defendants have an obligation to comply with alleged requirements, which they do not. Further, this interrogatory seeks information that is not relevant to any claim or defense asserted

by any party in this litigation. In addition, this interrogatory is vague and ambiguous as it fails to identify what alleged requirements Plaintiff is referring to. Notwithstanding and without waiving these objections and the preceding general objections, the Long Defendants do not have any obligation to comply with any requirements in the Phase VII and Phase VIII Declarations because any stated obligations in those Declarations run to an entity that does not exist, the Landings Common Area Association, Inc.

Interrogatory No. 5:

When did the Long Defendants become aware of the incongruity in the name of the corporation established on or about March 31, 2005 (The Landings Property Owners Association, Inc.), versus the name of the corporation that was required to be established by the Phase VII and Phase VIII Declarations (the Landings Common Area Association, Inc.)?

Answer: OBJECTION. This interrogatory requests information that is protected by the attorney-client privilege, and the attorney work product doctrine. In addition, this interrogatory is vague and ambiguous as it fails to define the term “incongruity”. Further, this interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. In addition, it assumes that the Long Defendants were aware of an entity that existed known as The Landings Property Owners Association, Inc., when none of the Long Defendants were ever provided any information regarding the existence of The Landings Property Owners Association, Inc., or any regulations or any information regarding its officers, members, or trustees, from Mullins Bros., Ltd., its legal counsel, The Landings Property Owners Association, Inc., or anyone else. Notwithstanding and without waiving these objections and the preceding general objections, the first time that any of the Long Defendants became aware that there was a claimed alleged entity known as The Landings Property Owners Association, Inc. was in February, 2013. Most of the Long Defendants did not become aware of the claim of an alleged entity known as The Landings Property Owners Association, Inc. until after this lawsuit was filed.

Interrogatory No. 6:

Did you take any action to correct the incongruity in the name of the corporation as described in Interrogatory No. 5 and, if so, what action did you take and when?

Answer: OBJECTION. This interrogatory requests information that is protected by the attorney-client privilege, and the attorney work product doctrine. This interrogatory also assumes that the Long Defendants had an obligation to correct the alleged incongruity, and that they were all aware of it. In addition, this interrogatory is vague and ambiguous as it fails to define the term “incongruity”. Further, this interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Notwithstanding and without waiving these

objections and the preceding general objections, the Long Defendants did not have any obligation to correct legal documents prepared by counsel for Mullins Bros., Ltd., were never provided copies of any papers having to do with the corporation apparently established on or about March 31, 2005 (The Landings Property Owners Association, Inc.), by Mullins Bros., its legal counsel, and/or The Landings Property Owners Association, Inc., were unaware of the existence of The Landings Property Owners Association, Inc., and did not take any such action.

Interrogatory No. 7:

Did you inform Mullins Bros. or The Landings Property Association, Inc., of the incongruity in the name of the corporation as described in Interrogatory No. 5 and, if so, who did you inform, how did you inform them, and when?

Answer: OBJECTION. This interrogatory is vague and ambiguous as it references an entity of which the Long Defendants have no knowledge, The Landings Property Association, Inc.. Further, this interrogatory assumes that the Long Defendants had an obligation to inform Mullins Bros. or The Landings Property Association, Inc., of the claimed incongruity, which they did not. In addition, this interrogatory is vague and ambiguous as it fails to define the term “incongruity”. In addition, this interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Notwithstanding and without waiving these objections and the preceding general objections, assuming that this interrogatory refers to The Landings Property Owners Association, Inc., the Long Defendants were unable to inform The Landings Property Owners Association, Inc. of anything, because they were never members of The Landings Property Owners Association, Inc., and had never received any notification from Mullins Bros., Ltd., its legal counsel, The Landings Property Owners Association, Inc., or anyone else about the existence of The Landings Property Owners Association, Inc., there were no regulations ever established for The Landings Property Owners Association, Inc., and there were no officers, directors, trustees, or members of The Landings Property Owners Association, Inc. that they could have possibly contacted. Further, the Long Defendants did not have any obligation to inform Mullins Bros., Ltd. of any possible error in legal documents prepared by legal counsel for Mullins Bros., Ltd., and reviewed by Mullins Bros., Ltd.

Interrogatory No. 8:

Identify which Long Defendants have at any time served as an officer, trustee, and/or representative for The Landings Property Owners Association, Inc., and identify the role and dates of service.

Answer: OBJECTION. This interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. This interrogatory is vague and ambiguous as to the undefined term “representative.” In addition, it assumes that

the Long Defendants were aware of an entity that existed known as The Landings Property Owners Association, Inc., when none of the Long Defendants were ever provided any information regarding the existence of The Landings Property Owners Association, Inc., or any regulations or any information regarding its officers, members, or trustees, from Mullins Bros., Ltd., its legal counsel, The Landings Property Owners Association, Inc., or anyone else. Notwithstanding and without waiving these objections and the preceding general objections, none of the Long Defendants have at any time served as an officer, trustee, and/or representative for The Landings Property Owners Association, Inc.

Interrogatory No. 9:

Identify which Long Defendants have at any time been members of The Landings Property Owners Association, Inc.

Answer: OBJECTION. This interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. In addition, it assumes that the Long Defendants were aware of an entity that existed known as The Landings Property Owners Association, Inc., when none of the Long Defendants were ever provided any information regarding the existence of The Landings Property Owners Association, Inc., or any regulations or any information regarding its officers, members, or trustees, from Mullins Bros., Ltd., its legal counsel, The Landings Property Owners Association, Inc., or anyone else. Notwithstanding and without waiving this objection and the preceding general objections, none of the Long Defendants have at any time been members of The Landings Property Owners Association, Inc.

Interrogatory No. 10:

For any of the Long Defendants who have never joined The Landings Property Owners Association, Inc., or were once members but are no longer members, identify the reason they did not join or the reason they left The Landings Property Owners Association, Inc.

Answer: OBJECTION. This interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. In addition, this interrogatory assumes that the Long Defendants had an obligation to become a member of an entity that they had no idea existed. Notwithstanding and without waiving these objections and the preceding general objections, none of the Long Defendants were ever provided any information regarding the existence of The Landings Property Owners Association, Inc., or any regulations for that purported entity, or any information regarding officers, members, or trustees for that purported entity, and it was therefore impossible for them to join The Landings Property Owners Association, Inc.

Interrogatory No. 11:

Did any of the Long Defendants pay dues or an annual assessment to The Landings Property Owners Association, Inc.? If so, identify the lot owners and amounts paid by year.

Answer: OBJECTION. This interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. In addition, this interrogatory assumes that the Long Defendants had an obligation to pay dues or an annual assessment to an entity that they had no idea existed, and that never sent them any request for payment of dues or an annual assessment, which they did not. Notwithstanding and without waiving these objections and the preceding general objections, none of the Long Defendants ever paid any dues or an annual assessment to The Landings Property Owners Association, Inc., and no one ever requested payment from them of any dues or an annual assessment to The Landings Property Owners Association, Inc.

Interrogatory No. 12:

For the Long Defendants who have not paid dues or annual assessments to The Landings Property Owners Association, Inc., explain why they have not paid dues or annual assessments.

Answer: OBJECTION. This interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. In addition, this interrogatory assumes that the Long Defendants had an obligation to pay dues or an annual assessment to an entity that they had no idea existed, and that never sent them any request for payment of dues or an annual assessment, which they did not. Notwithstanding and without waiving these objections and the preceding general objections, none of the Long Defendants were ever provided any information regarding the existence of The Landings Property Owners Association, Inc., or any regulations or any information regarding officers, members, or trustees, from Mullins Bros., Ltd., its legal counsel, The Landings Property Owners Association, Inc., or anyone else, and no one ever submitted to any of the Long Defendants any request for dues or annual assessments.

Interrogatory No. 13:

Did The Landings Property Owners Association, Inc., enforce sections of the Phase VII and/or Phase VIII Declarations by imposing liens as provided in those Declarations on any of the Long Defendants, and, if so, what liens were imposed, upon whom, and when?

Answer: OBJECTION. This interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. In addition, it assumes that the Long Defendants were aware of an entity that existed known as The Landings Property Owners Association, Inc., when none of the Long Defendants were ever provided any information regarding the existence of The Landings Property

Owners Association, Inc., or any regulations or any information regarding its officers, members, or trustees, from Mullins Bros., Ltd., its legal counsel, The Landings Property Owners Association, Inc., or anyone else. Notwithstanding and without waiving these objections and the preceding general objections, none of the Long Defendants were ever provided any information regarding the existence of The Landings Property Owners Association, Inc., or any regulations or any information regarding officers, members, or trustees for that purported entity, from Mullins Bros., Ltd., its legal counsel, The Landings Property Owners Association, Inc., or anyone else. The Long Defendants are unaware of whether The Landings Property Owners Association, Inc., enforced sections of the Phase VII and/or Phase VIII Declarations by imposing liens as provided in those Declarations. The Landings Property Owners Association, Inc., never enforced sections of the Phase VII and/or Phase VIII Declarations by imposing liens as provided in those Declarations on any of the Long Defendants.

Interrogatory No. 14:

Did The Landings Property Owners Association, Inc., operate under the Initial Articles of Incorporation attached as Exhibit “A” to the Phase VII Declaration, and, if so, how and when?

Answer: OBJECTION. This interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. In addition, it assumes that the Long Defendants have information regarding the operation of an entity that none of them were members of or even knew existed. Further, this interrogatory misstates the evidence, because the Articles of Incorporation for The Landings Property Owners Association, Inc. were not attached as Exhibit “A” to the Phase VII Declaration. Notwithstanding and without waiving these objections and the preceding general objections, the Articles of Incorporation for The Landings Property Owners Association, Inc. were not attached as Exhibit “A” to the Phase VII Declaration. None of the Long Defendants were ever provided any information regarding the existence of The Landings Property Owners Association, Inc., nor do they have any information about how The Landings Property Owners Association, Inc. operated, if it did. None of the Long Defendants have at any time been members of The Landings Property Owners Association, Inc.

Interrogatory No. 15:

Why did The Landings Property Owners Association, Inc., fail to file a Statement of Continued Existence with the Ohio Secretary of State resulting in cancellation of its Articles of Incorporation on March 2, 2015?

Answer: OBJECTION. This interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. In addition, it assumes that the Long Defendants have information regarding the operation of an entity that none of them were members of or even knew existed. Notwithstanding and without

waiving these objections and the preceding general objections, none of the Long Defendants were ever provided any information regarding the existence of The Landings Property Owners Association, Inc., or why it may have failed a Statement of Continued Existence with the Ohio Secretary of State from Mullins Bros., Ltd., its legal counsel, The Landings Property Owners Association, Inc., or anyone else. None of the Long Defendants have at any time been members of The Landings Property Owners Association, Inc. The Long Defendants do not know why the Landings Property Owners Association, Inc., did not file a Statement of Continued Existence with the Ohio Secretary of State

Interrogatory No. 16:

What is the purpose of The Landing Development Phase VII and VIII Property Owners Association, Inc.?

Answer: OBJECTION. This interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Notwithstanding and without waiving this objection and the preceding general objections, the purpose of The Landing Development Phase VII and VIII Property Owners Association, Inc. is to have an Association composed of Members who are Lot Owners in The Landing Development Phase VII and VIII to ensure the property owners are maintaining their properties, following the recorded building and use restrictions, to enhance the overall Subdivision welfare and to undertake any other matter necessary for the care, protection and preservation of the Subdivision; to collect assessments for the payment of common expenses in accordance with Section 5312.10 of the Ohio Revised Code, to include but not be limited to rental of Association meeting room, post office box rental, insurance, postage, office supplies, legal counsel and accounting services, and to exercise all the powers conferred by the laws of Ohio, including Chapter 5312 of the Revised Code of Ohio upon non-profit corporations.

Interrogatory No. 17:

Which, if any, Long Defendants are or have been members of The Landing Development Phase VII and VIII Property Owners Association, Inc.?

Answer: OBJECTION. This interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Notwithstanding and without waiving this objection and the preceding general objections, all of them.

Interrogatory No. 18:

Identify which Long Defendants have at any time served as an officer, trustee, and/or representative for The Landing Development Phase VII and VIII Property Owners Association, Inc., and identify the role and dates of service.

Answer: OBJECTION. This interrogatory is vague and ambiguous as to the undefined term “representative.” Moreover, this interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Notwithstanding and without waiving these objections and the preceding general objections:

	2012-2013	2013-2014	2014-2015	2015-2016	2016-2017
President	Derk Demaree	Cloyd Young	Jeffry Harris	Jeffry Harris	Bharon Hoag
Treasurer	Chetan Patel	Chetan Patel	Scott Miglin	Scott Miglin	Scott Miglin
Secretary	Diane Goodrich	Diane Goodrich	Diane Goodrich	Diane Goodrich	Diane Goodrich
Trustee	Brad Whitaker	Janet Boyd	Janet Boyd	Janet Boyd	Janet Boyd
Trustee	Janet Boyd	Jeffry Harris	Bharon Hoag	Bharon Hoag	Jeffry Harris
Trustee	Cloyd Yough	Scott Miglin	Chetan Patel	Casey Swanson	Casey Swanson
	2018-2019	2019-2020	2020-2021	2021-2022	2022-2023
President	Jeffry Harris	Jeffry Harris	Jeffry Harris		
Treasurer	Scott Miglin	Mike Ulrey	Mike Ulrey	Mike Ulrey	Mike Ulrey
Secretary	Diane Goodrich	Diane Goodrich	Diane Goodrich		Debbie Banda
Trustee	Janet Boyd	Janet Boyd	Jesse Marlow	Cynthia Cunningham	Cynthia Cunningham
Trustee	Michael Ulrey	Scott Miglin	Noah Aydin	Noah Aydin	Noah Aydin
Trustee	Alex Varughese	Alex Varughese	Andrea White	Andrea White	Andrea White
Trustee					Matthew Snow

Interrogatory No. 19:

Why did The Landing Development Phase VII and VIII Property Owners Association, Inc., fail to file statements of continuing existence with the Ohio Secretary of State, resulting in its cancellation on September 4, 2017, and October 3, 2022?

Answer: OBJECTION. This interrogatory seeks information that is not relevant to any claim or defense asserted by any party in this litigation. Notwithstanding and without waiving this objection and the preceding general objections, the two indicated statements of continuing existence were not filed due to an oversight.

Interrogatory No. 20:

If the Long Defendants contend that they are not owners of the Dam, then who do the Long Defendants contend are the owners of the Dam?

Answer: OBJECTION. This interrogatory calls for a legal conclusion. Notwithstanding and without waiving this objection and the preceding general objections, on information and belief, Mullins Bros. Ltd. transferred the property where the Lake and the Dam involved in this case is situated to The Landings Property Owners Association, Inc. by virtue of a Quitclaim Deed filed in Book No. 1091, Page No. 637, described as Parcel No. 66-09675.162 of the Records of Knox County, on or about August 1, 2007, and The Landings Property Owners Association, Inc. is therefore the owner of the Dam, unless Mullins Bros. Ltd. failed to effectively transfer that land, in which case Mullins Bros. Ltd. is the owner of the Dam.

Interrogatory No. 21:

What facts support the Long Defendants' affirmative defense in their Answer to the State's Third Amended Complaint that "Plaintiff has failed to include one or more necessary and/or indispensable parties to this action"?

Answer: OBJECTION. This interrogatory calls for a legal conclusion. Further, this interrogatory requests information that is protected by the attorney-client privilege, and the attorney work product doctrine. In addition, this interrogatory is overbroad and unduly burdensome. Notwithstanding and without waiving these objections and the preceding general objections, on information and belief, the Court filed a Journal Entry on or about July 26, 2022, in which the Court ordered Mullins Bros. Ltd. to join any property owner in the watershed basin on a list of property owners in the watershed basin which contribute water flow to the lake and the Dam, to be provided by the City of Mount Vernon, who has or may claim an interest in the issues in the case, or in whose absence complete relief cannot be afforded those already parties to the case, or otherwise as a necessary party to a just and complete adjudication of the issues in this case pursuant to Civ. R. 19 and 20. Those property owners have not been joined in this case.

Interrogatory No. 22:

What facts support the Long Defendants' affirmative defense in their Answer to the State's Third Amended Complaint that the State's claims are barred by the doctrine of waiver?

Answer: OBJECTION. This interrogatory calls for a legal conclusion. Further, this interrogatory requests information that is protected by the attorney-client privilege, and the attorney work product doctrine. In addition, this interrogatory is overbroad and unduly burdensome. Notwithstanding and without waiving these objections and the preceding general objections, over the course of many years and many

communications, until the filing of this lawsuit in 2020, the State never asserted that any of the Long Defendants owned the Dam, instead consistently asserting that others owned the Dam, with full knowledge of all of the facts and understanding of the laws of dam ownership. This delay in the assertion of claims has unfairly prejudiced the Long Defendants.

Interrogatory No. 23:

What facts support the Long Defendants' affirmative defense in their Answer to the State's Third Amended Complaint that the State's claims are barred by the doctrine of estoppel?

Answer: OBJECTION. This interrogatory calls for a legal conclusion. Further, this interrogatory requests information that is protected by the attorney-client privilege, and the attorney work product doctrine. In addition, this interrogatory is overbroad and unduly burdensome. Notwithstanding and without waiving these objections and the preceding general objections, over the course of many years and many communications, and the filing of this lawsuit in 2020, the State never asserted that any of the Long Defendants owned the Dam, instead consistently asserting that others owned the Dam, with full knowledge of all of the facts and understanding of the laws of dam ownership. This delay in the assertion of claims has unfairly prejudiced the Long Defendants.

Interrogatory No. 24:

What facts support the Long Defendants' affirmative defense in their Answer to the State's Third Amended Complaint that the State's claims are barred by the doctrine of laches?

Answer: OBJECTION. This interrogatory calls for a legal conclusion. Further, this interrogatory requests information that is protected by the attorney-client privilege, and the attorney work product doctrine. In addition, this interrogatory is overbroad and unduly burdensome. Notwithstanding and without waiving these objections and the preceding general objections, The State has known of claims it has against the owners of the Dam since, at the latest, 2009, but never asserted in any way that any of the Long Defendants were owners of the Dam, or potential owners of the Dam, instead consistently asserting that others owned the Dam, until March 31, 2023, with full knowledge of all of the facts and understanding of the laws of dam ownership. This delay in the assertion of claims has unfairly prejudiced the Long Defendants.

Interrogatory No. 25:

If the response to any Request for Admission is anything other than an unqualified admission, describe the basis for your response.

Answer: OBJECTION. This interrogatory is overbroad and unduly burdensome. In addition, this interrogatory is not proportional to the needs of the case, considering the importance of the issues at stake in the action, the amount in controversy, the parties' relative access to relevant information, the parties' resources, the importance of the discovery in resolving the issues, and whether the burden or expense of the proposed discovery outweighs its likely benefit.

REQUESTS FOR PRODUCTION OF DOCUMENTS

Request for Production No. 1:

Produce each and every document you intend to introduce into evidence or to otherwise use at trial, deposition, and/or any hearing in this matter.

Response: OBJECTION. The identity of documents the Long Defendants intend to introduce into evidence or to otherwise use at trial, deposition, and/or any hearing in this matter is protected by the attorney work product doctrine. The decision as to what documents to be used for those purposes will be made by counsel for the Long Defendants. In addition, a final decision has yet to be made on what documents may be used for any such purpose. There is no hearing or trial scheduled in this case. In addition, all of the documents that the Long Defendants reasonably anticipate may be used for any of the stated purposes are already in the possession of Plaintiff, and it would be unduly burdensome to produce documents to Plaintiff which are already in Plaintiff's possession. Notwithstanding and without waiving these objections and the preceding general objections, the following documents, among others, may be used for the stated purposes:

1. 1993 ODNR Letter to Knox Cattle Company
2. 1992 ODNR Dam Inspection Report
3. 1998 ODNR Letter to Knox Cattle Company relating to flood damage
4. 1999 Shafer, Johnston, Lichtenwalter & Associates Stormwater Design Report
5. ODNR Inspection Report and Classification
6. Warranty Deed from Knox Cattle Company to Mullins Bros., Ltd., recorded March 15, 2005
7. Quitclaim deeds from Knox Cattle Company to Quitclaim Defendants
8. The Landings Phase V plat
9. Declaration of Building and Development Restrictions for the Landing Development Phase V, Phase VB, Phase DC and Phase VI, recorded September 28, 1988
10. Waters Edge Phase V plat
11. Maps of Knox Cattle Dam and surrounding properties
12. Declaration of Building and Development Restrictions for the Landing Development Phase VII, revised, recorded February 22, 2005
13. ODNR correspondence to Quitclaim Defendants in 2009

14. Records of ODNR site visit of April 30, 2005
15. Wayne Dunlop and Floyd Matthews correspondence to ODNR in 2013
16. Mike Haughton letter to ODNR in 2019
17. 2015 Dam Safety Inspection Report
18. Aerial Photographs of Knox Cattle Dam and surrounding properties
19. Emails from various property owners to ODNR
20. Emails from various property owners to the City of Mount Vernon
21. ODNR internal email communication
22. Regulations and Bylaws of The Landing Development Phase VII & VIII, Inc.
23. Quit claim deed from Mullins Bros., Ltd. to The Landings Property Owners Association, Inc., July 31, 2007
24. Declaration of Building and Development Restrictions for The Landing Development Phase VIII, recorded March 13, 2007
25. Certificate, Ohio Secretary of State, cancelled/failure to file/statement cont. existence, The Landings Property Owners Association, Inc., March 2, 2015
26. Plat map, The Landing, Phase VIII, July 19, 2006
27. Plat map, The Landing, Phase VII, February 24, 2005
28. Location map
29. Site map
30. Letter, attorney Kim M. Rose to Rodney J. Tornos, P.E., Ohio Department of Natural Resources, June 7, 2018
31. Letter, attorney Kim M. Rose to Mia P. Kannik, P.E., Ohio Department of Natural Resources, September 19, 2018
32. Initial Articles of Incorporation, The Landings Property Owners Association, Inc.
33. Letter, David Hanselmann, Ohio Department of Natural Resources to “Dear Dam Owners,” October 14, 2009
34. ODNR Dam Safety Inspection Report, Knox Cattle Company Dam, November 25, 2019

35. Email message, Brett Kravitz to Nita Hanson, and others, September 27, 2022
36. 2010 Dam Safety Inspection Report
37. Letter, ODNR to potential owners of the Dam, April 26, 2018

Request for Production No. 2:

Produce all documents consulted, relied upon or referenced in preparing the Long Defendants' responses to the above Interrogatories and/or Requests for Admission.

Response: OBJECTION. The identity of these documents is protected by the attorney client privilege and the attorney work product doctrine. Further, this request is overbroad and unduly burdensome. In addition, this request is not proportional to the needs of the case, considering the importance of the issues at stake in the action, the amount in controversy, the parties' relative access to relevant information, the parties' resources, the importance of the discovery in resolving the issues, and whether the burden or expense of the proposed discovery outweighs its likely benefit. In addition, this request seeks production of documents that are in the possession of, known to, or otherwise equally available to Plaintiff. Notwithstanding and without waiving these objections and the preceding general objections, these documents include the documents identified in response to Request for Production No. 1, and documents concerning property owned by the Long Defendants which are a matter of public record.

Request for Production No. 3:

Produce all documents relating to any of the Long Defendants' affirmative defenses.

Response: OBJECTION. The identity of these documents is protected by the attorney client privilege and the attorney work product doctrine. This request is overbroad and unduly burdensome. In addition, this request is not proportional to the needs of the case, considering the importance of the issues at stake in the action, the amount in controversy, the parties' relative access to relevant information, the parties' resources, the importance of the discovery in resolving the issues, and whether the burden or expense of the proposed discovery outweighs its likely benefit. In addition, this request seeks production of documents that are in the possession of, known to, or otherwise equally available to Plaintiff. Notwithstanding and without waiving these objections and the preceding general objections, these documents include the documents identified in response to Request for Production No. 1.

As to all objections,

/s/ Stephen E. Chappellear

Stephen E. Chappellear (0012205)

Respectfully submitted,

/s/ Stephen E. Chappellear

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CERTIFICATE OF SERVICE

I hereby certify that a true and accurate copy of the foregoing was served upon the following via electronic or regular mail this 5th day of October, 2023.

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